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Case Number: 24NWCV00679 Hearing Date: August 11, 2026 Dept: L

Plaintiff Victor M. Curiel's

Motion for Summary Adjudication is GRANTED as to the first and fourth causes of action and is DENIED as to the second and third causes of action.

Plaintiff to give notice.

Background

This is an action for breach of contract. On March 5, 2024, Plaintiff Victor M. Curiel, Trustee of the Alice S. Gomes Living Trust, ("Plaintiff") filed this action against Defendant Maribel Cruz ("Defendant") and Does 1 to 10. The Complaint alleged that Plaintiff loaned \$100,000 to Defendant on November 21, 2022, and Defendant has not repaid any part of the loan. The Complaint alleges the following causes of action: 1) Breach of Contract, 2) Fraud, 2) General Negligence, and 4) Common Counts.

On September 18, 2024, Defendant filed an Answer.

On October 21, 2025, Defendant filed a Substitution of Attorney, wherein Defendant became self-represented.

Plaintiff now moves for summary judgment, or in the alternative, summary adjudication as to all causes of action.

No opposition has been filed as of August 10, 2026.

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c, subdivision (c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, internal citations omitted.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 381-382.)

In moving for summary judgment, a plaintiff has met its “burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(1).)

Once a moving party has satisfied the initial burden of proof, the burden “shifts to the opposing party to show, by responsive separate statement and admissible evidence, that triable issues of fact exist.” (Ostayan v. Serrano Reconveyance Co. (2000) 77 Cal.App.4th 1411, 1418, disapproved on other grounds by Black Sky Cap., LLC v. Cobb (2019) 7 Cal.5th 156, 165.) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Discussion

First

Cause of Action – Breach of Contract

To state a cause of action for breach

of contract, Plaintiff must be able to establish “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

If a breach

of contract claim “is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 307.) In some circumstances, a plaintiff may also “plead the legal effect of the contract rather than its precise language.” (Construction Protective Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 198-199.)

Plaintiff argues that each element of the breach of cause of action is established, as summarized and supported by the following evidence:

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Existence of a Contract: Defendant asked Plaintiff if she could borrow \$100,000.00 via telephone. (Flores Decl., ¶ 4, Exh. A, Cruz Depo., 24:9, 24:17-22.) Plaintiff agreed to loan Defendant \$100,000. (Flores Decl., ¶ 4, Exh. A, Cruz Depo., 22:16-17, 25:5 9, 32:2-4.) On November 21, 2022, Plaintiff delivered a cashier's check to Defendant in the amount of \$100,000, which stated "Loan for six months" in the memo line. (Flores Decl., ¶ 4, Exh. A, Cruz Depo., 22:24-25, 32:2-6, Exh. 2; Curiel Decl., ¶ 3, Exh. A.) Defendant deposited the check into her account. (Flores Decl., ¶ 4, Exh. A, Cruz Depo., 36:1-3, 36:5-6.)

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Plaintiff's Performance: Plaintiff delivered the \$100,000.00 check to Defendant on November 21, 2022. 9 Flores Decl., ¶ 4, Exh. A, Cruz Depo., 22:24-25, 23:11-12, Exh. 2.)

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Defendant's Breach: Defendant thereafter failed

to make any payments on the loan. (Flores Decl., ¶ 4, Exh. A, Cruz Depo., 27:23-24, 28:1, 28:1-7.)

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Damages: Plaintiff suffered damages in the amount of \$100,000, representing the principal amount of the loan that remains unpaid, plus prejudgment interest at the legal rate of 10% per annum from the date the loan became due on May 21, 2023. (Flores Decl., ¶ 4, Exh. A, Cruz Depo., 22:24-25, 32:2-6, Exh. 2; Curiel Decl., ¶ 3, Exh. A.)

The Court finds that Plaintiff has met his burden in proving all elements of the breach of contract cause of action. The burden thus shifts to Defendant.

As Defendant has filed no opposition, the Court finds that Defendant has failed to meet her burden in establishing a triable issue of fact exists.

Accordingly, the Motion for Summary Adjudication is GRANTED as to the first cause of action.

Second
Cause of Action – Fraud

The Court initially notes that Plaintiff alleges various theories of fraud in the Complaint, including intentional or negligent misrepresentation, fraudulent concealment, and false promise.

The elements of fraud are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Hinesley v. Oakshade Town Ctr. (2005) 135 Cal.App.4th 289, 294.) Negligent misrepresentation requires the same elements as intentional misrepresentation except for “knowledge of falsity.” (See Apollo Capital Fund, LLC v. Roth Capital Partners, LLC (2007) 158 Cal.App.4th 226, 243.)

“One who willfully deceives another with intent to induce him to alter his position to his injury or risk, is

liable for any damage which he thereby suffers.” (Civ. Code § 1709.) Deceit may be defined as “[a] promise, made without any intention of performing it.” (Civ. Code, § 1710, subd. (4).) “[I]n a promissory fraud action, to sufficiently allege[] defendant made a misrepresentation, the complaint must

allege (1) the defendant made a representation of intent to perform some future action, i.e., the defendant made a promise, and (2) the defendant did not really have that intent at the time that the promise was made, i.e., the promise was false.” (Beckwith v. Dahl (2012) 205 Cal.App.4th 1039, 1060.)

The elements for fraudulent concealment are as follows: 1) defendant concealed or suppressed a material fact, 2) defendant was under a duty to disclose the fact to the plaintiff, 3) defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, 4) plaintiff was unaware of the fact and would not have acted in the same way knowing of the concealed or suppressed fact, 5) causation, and the plaintiff sustained damage. (See Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 868; see also Lovejoy v. AT&T Corp. (2001) 92 Cal.App.4th 85, 96; Hahn v. Mirda (2007) 147 Cal.App.4th 740, 748.)

Plaintiff asserts that all elements of fraud had been established. Plaintiff asserts that, “[b]y accepting a loan with a six-month repayment term, Defendant impliedly represented she would be able to repay within that timeframe.” (Mot., 8:25-26.) However, Defendant concealed certain material facts suggesting that she had no intention or ability to pay back the loan. For example, Defendant admitted that her salary was insufficient to repay the loan at the time she borrowed it. (Flores Decl., ¶ 4, Exh. A, Cruz Depo., 32:14-22.) Additionally, Defendant testified that he plan to repay Plaintiff was to obtain other personal loans but that she was unable to qualify for such loans after she borrowed the loan from Plaintiff. (Flores Decl., ¶ 4, Exh. A, Cruz Depo., 30:15-20.) Defendant also made an express false representation on July 2, 2023, she told Plaintiff she had “a check for 100 thousand that is waiting to clear.” (Flores Decl., ¶ 4, Exh. A, Cruz Depo., 46:1-4, Exh. 3.) However, Defendant admitted that no such check existed. (Flores Decl., ¶ 4, Exh. A, Cruz Depo., 47:11.) Further, when asked about Defendant’s intent and plan to repay, Defendant gave no response or refused to answer. (Flores Decl., ¶ 4, Exh. A, Cruz Depo., 28:25, 29:1-2, 38:1, 38:3, 40:22, 40:25, 41:1, 47:5, 47:15, 47:19, 48:1-3.) Plaintiff argues that Defendant’s “evasiveness regarding

her fraudulent conduct and intent supports the inference of fraud.” (Mot., 10:10.) Plaintiff justifiability relied on Defendant’s concealment/representations, as he had no reason to suspect that Defendant would be unable to pay. Plaintiff suffered \$100,000.00, plus interest.

The Court finds that Plaintiff has failed to meet his burden in proving all elements required for intentional misrepresentation/deceit or fraudulent concealment.

First, as to fraudulent concealment, Plaintiff does not address Defendant’s duty to disclose, a required element for that claim.

As to intentional misrepresentation/deceit, the Court is not persuaded by the evidence presented that Defendant’s promise to repay the loan was false at the time she made the promise—i.e., that she had no intent to perform her promise. When asked how Defendant intended to repay the loan, Defendant testified that she intended to get other personal loans. (Flores Decl., ¶ 4, Exh. A, Cruz Depo., 26:12-25.) A close reading of Defendant’s testimony only indicates that she did not qualify for such loans after she received the loan from Plaintiff. (Flores Decl., ¶ 4, Exh. A, Cruz Depo., 27:1-8, 30:3-8.) Thus, there is no indication that Defendant knew she could not qualify for a separate personal loan, to repay Plaintiff’s loan, prior to receiving the loan from Plaintiff. Further, the Court finds that Defendant’s failure to respond or refusal to answer questions regarding her intent to repay the loan is not affirmative evidence of her intent not to repay. Plaintiff’s other evidence—i.e., that Defendant gifted \$75,000.00 to her uncle in Mexico and \$25,000.00 to her friend) after receiving the loan—is speculative as to the issue of Defendant’s intent. (Flores Decl., ¶ 4, Exh. A, Cruz Depo., 37:7-15.)

Further, the Court finds that Plaintiff’s damages for fraud are duplicative of Plaintiff’s damages for breach of contract.

“[T]he economic loss rule requires a [contractual party] to recover in contract for purely economic loss due to disappointed expectations, unless [the party] can demonstrate harm above and beyond a broken contractual promise. . . [T]ort recovery for breach of a contract duty is generally barred. . . unless two

conditions are satisfied. A plaintiff must first demonstrate the defendant's injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant's conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed."

(Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 20–21, internal quotations and citations omitted.)

Here, the Court finds that, as alleged, the economic loss rule bars Plaintiff's fraud claim. In other words, Plaintiff has failed to demonstrate any separate harm arising from the breach of contract as a result of the alleged fraud.

Thus, the Court finds that Plaintiff has failed to meet his burden of proof in establishing no triable issue of fact exists as to the second cause of action.

Accordingly, the Motion for Summary Adjudication is DENIED as to the second cause of action.

Third
Cause of Action – Negligence

In order to state a claim for negligence, Plaintiff must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

Plaintiff argues that Defendant "negligently caused damages to Plaintiff by failing to exercise reasonable care in her financial dealings." (Mot., 12:11-12.) Plaintiff essentially cites the same evidence offered in support of the breach of contract and fraud causes of action—i.e., that Defendant failed to repay the loan.

The Court finds that Plaintiff has failed to meet his burden in proving all elements required for negligence. Specifically, Plaintiff offers no evidence that Plaintiff suffered non-economic damages based on a breach of duty separate from Defendant's contractual duties.

For reasons stated in the Court's discussion on the fraud cause of action, the Court finds that this cause of action is barred by the economic loss rule.

Accordingly, the Motion for Summary Adjudication is DENIED as to the third cause of action.

Fourth

Cause of Action – Common Counts (Money Lent)

The required elements of a common count claim are “(1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment.” (Farmers Insurance Exchange v. Zerin (1997) 53 Cal.App.4th 445, 460, citation and quotation marks omitted.)

“To state a common count for money lent, the plaintiff need only allege that the defendant is indebted in a certain sum for money loaned by the plaintiff and that the defendant has not repaid the money. [Citations.]” (Etchegaray Farms, LLC v. Lehr Brothers, Inc. (E.D.Cal. 2018) 326 F.Supp.3d 987, 994; see also 55 Cal. Jur. 3d Restitution § 25; Moya v. Northrup (1970) 10 Cal.App.3d 276, 280.)

Plaintiff asserts that all elements of the common counts cause of action are met. Defendant is indebted to Plaintiff in the amount of \$100,000.00, and the sum remains due and unpaid. Plaintiff cites to evidence offered in support of the breach of contract cause of action.

The Court finds that Plaintiff has met his burden in proving all elements of the breach of contract cause of action. The burden thus shifts to Defendant.

As Defendant has filed no opposition, the Court finds that Defendant has failed to meet her burden in establishing a triable issue of fact exists.

Accordingly, the Motion for Summary Adjudication is GRANTED as to the second cause of action.